

HOUSE No. 2423

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey and Christine P. Barber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to pupil dental health.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/15/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/3/2025</i>

HOUSE No. 2423

By Representatives Garballey of Arlington and Barber of Somerville, a petition (accompanied by bill, House, No. 2423) of Sean Garballey, Christine P. Barber and Paul J. Donato relative to oral health examinations for public school students. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2172 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to pupil dental health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Chapter 71 Section 57 of the General Laws is hereby amended by inserting
2 the following after the first paragraph:

3 Upon entering kindergarten or within 30 days of the start of the school year, the parent or
4 guardian of each child shall present to school health personnel certification that the child within
5 the previous 12 months has received a dental screening by a qualified licensed dental
6 professional that was performed no earlier than 12 months prior to the date of initial enrollment
7 of the pupil.

8 The parent or legal guardian of a pupil may be excused from complying by indicating
9 that the dental screening could not be completed because of one or more of these reasons:

(A) Completion of a screening poses an undue financial burden on the parent or legal guardian.

(B) Parents or legal guardians does not consent to a dental screening.

SECTION 2: Chapter 71 of the General Laws is hereby amended by inserting after Section 34H, the following new section:-

Section 34I. A public school shall notify the parent or legal guardian of a pupil described in the second paragraph of Section 57 of Chapter 71 concerning the screening required. The notification shall, at a minimum, consist of a letter that includes all of the following:

(1) An explanation of the administrative requirements of this section.

(2) Information on the importance of primary teeth.

(3) Information on the importance of oral health to overall health as it relates to learning.

(4) Contact information for public health departments.

(5) A statement of privacy applicable under state and federal laws and regulations.

SECTION 3: Chapter 111 of the General Laws is hereby amended in Section 185A by inserting at the end of the Section the following sentence:-

The department shall provide information to parents and legal guardians about programs and services to access affordable dental care.

SECTION 4: In order to ensure uniform data collection, the department of public health, in consultation with interested persons, shall develop and make available on the internet website

29 of the department, a standardized notification form as specified in section 2 that shall be used by
30 each school district. The standardized form shall include all of the following:

31 (1) A section that can be used by the licensed dental professional performing the dental
32 screening to record information that includes, but is not limited to, the following:

33 (A) Date of the dental screening

34 (B) School name

35 (C) Name and address of the licensed dental professional performing the screening

36 (D) Grade

37 (E) Age

38 (F) Gender

39 (G) Race/ethnicity

40 (H) Charting of untreated cavities

41 (I) Number of missing teeth

42 (J) Number of filled cavities

43 (K) Presence of sealants on permanent molars

44 (L) Treatment urgency

45 (2) A section in which the parent or legal guardian of a pupil can indicate the reason why
46 a screening could not be completed by marking the box next to the appropriate reason. The

reasons for not completing a screening shall include those detailed in section 1 subparagraphs (A) and (B).

SECTION 5: Upon receiving completed screening forms, all school districts shall, by December 31 of each year, submit a report to the department of public health. The department of public health shall create, in consultation with interested persons, an internet-based application for the collection of the reports. The report shall include all of the following:

(1) The total number of pupils in the district, by school, who are subject to the requirement to present proof of having received an oral health assessment pursuant to Section 1.

(2) The total number of pupils described in paragraph (1) who present proof of a screening.

(3) The total number of pupils described in paragraph (1) who could not complete a screening due to financial burden.

(4) The total number of pupils described in paragraph (1) who could not complete a screening due to lack of access to a licensed dentist.

(5) The total number of pupils described in paragraph (1) who could not complete a screening because their parents or legal guardians did not consent to their child receiving the screening.

(6) The total number of pupils described in paragraph (1) who are screened and found to have untreated decay.

(7) The total number of pupils described in paragraph (1) who did not return either the screening form or the waiver request to the school.

68 SECTION 6: The department of public health shall maintain the data described in
69 section 5 in a manner that allows the department to release it upon request. This section does not
70 prohibit any of the following:

71 (1) The department of public health from sharing aggregate data collected pursuant to
72 section 5 with other governmental agencies, philanthropic organizations, or other nonprofit
73 organizations for the purpose of data analysis.

74 (2) Use of the screening data that is compliant with the federal Health Insurance
75 Portability and Accountability Act of 1996 for the purposes of conducting research and analysis
76 on the oral health status of public school pupils in the commonwealth.